



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: MA. JULINA B. JUTILO
SB SECRETARY

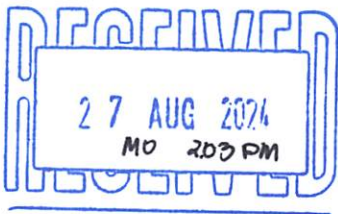
TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 91ST REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON AUGUST 20, 2024

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Acting Municipal Vice- Mayor/ Presiding Officer
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Tanie A. Quillano		SB Member



EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Carmelito E. Valeroso		SB Member
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SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan		IP Mandatory Representative
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ABSENT:

Hon. Harvey S. Manawatao		Municipal Vice-Mayor/ Acting Municipal Mayor
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ORDINANCE NO. 15
Series of 2024

“AN ORDINANCE OPERATIONALIZING FREEDOM OF INFORMATION IN THE MUNICIPAL
GOVERNMENT OF CARMEN, SURIGAO DEL SUR AND PROVIDING GUIDELINES THEREFOR”

Author : Hon. Michael C. Escuyos

Enacted: All Members present

EXPLANATORY NOTE

Malicious complaints are often filed by wicked individuals whose purpose is simply to malign a person. Appointive and Elective Officials in the Local Government Unit of Carmen, Surigao del Sur

and its barangays are exposed against the said malicious complaints. One will be just surprised how his or her records has been produced from the record's custodian. On the other hand, there are instances when constituents are in doubt of any local and barangay projects, but refused to have access of the records. To protect the name of the appointive and local officials, and to have access of the accomplishment reports of the project for purposes of transparency and accountability, the enactment of this ordinance is deemed imperative.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

SECTION 1. Title- This ordinance shall be known as the "FOI Ordinance of 2024."

SECTION 2. Definition of Terms- For the purpose of this Ordinance, the following terms shall mean:

- a) **Information-** shall mean any records, documents, papers, reports, letters, contracts, minutes and transcripts of official meetings, maps, books, photographs, data, research materials, films, sound and video recording, magnetic or other tapes, electronic data, computer stored data, any other like or similar data or materials recorded, stored or archived in whatever format, whether offline or online, which are made, received, or kept in or under the control and custody of any government office under the Municipal Government of Carmen, Surigao del Sur pursuant to law, ordinance, executive order, and rules and regulations or in connection with the performance or transaction of official business by any government office under the Municipal Government of Carmen.
- b) **Official Record-** shall refer to information produced or received by a public officer or employee, or by a government office in an official capacity or pursuant to a public function or duty.
- c) **Public Record-** shall include information required by laws, executive orders, rules, or regulations to be entered, kept and made publicly available by a government office.

SECTION 3. Coverage- This order shall cover all government offices under the Municipal Government of Carmen, Surigao del Sur.

SECTION 4. Access to Information- Every Filipino resident of Carmen, Surigao del Sur shall have access to information, official records, public records and to documents and papers pertaining to official acts, transactions or decisions, as well as to government research data used as basis for policy development, in the custody of the Municipal Government of Carmen, Surigao del Sur or any of its offices.

SECTION 5. Exceptions- Freedom of Information (FOI) shall be denied when the information falls under any of the exceptions enshrined in the Constitution, existing law, or jurisprudence.

Pursuant to this, the Chairman Committee on Laws is directed to prepare a Local Inventory of FOI exceptions and submit the same to the Secretary to the Sangguniang Bayan within thirty (30) calendar days from the date of effectivity of this ordinance, for its approval.

Thereafter, the Secretary to the Sangguniang Bayan of Carmen, Surigao del Sur shall cause the posting of the local inventory of FOI exceptions for the guidance of all government offices covered by this ordinance. Said local inventory of FOI exceptions shall be periodically updated by the Secretary to the Sangguniang Bayan.

SECTION 6. Availability of SALN- subject to the provisions contained in Section 4 and 5 of this Ordinance, all public officials of the Municipal Government of Carmen, Surigao del Sur are reminded of their obligation to file and make available for scrutiny their Statement of Assets, Liabilities and Net



Worth (SALN) in accordance with existing laws, rules and regulations, and the spirit and letter of this ordinance.

SECTION 7. Application and Interpretation- There shall be a legal presumption in favor of access to information, public records and official records. No request for information shall be denied unless it clearly falls under any of the exceptions in the inventory of FOI exceptions.

The determination of the applicability of any of the exceptions to the request shall be the responsibility of the Head of the Office, which is in custody or control of the information, public record or official record, or the responsible provincial or field officer duly designated by him in writing.

In making such determination, the Head of the Office or his designated officer shall exercise reasonable diligence to ensure that no exception shall be used or availed of to deny any request for information or access to public records, or official records if the denial is intended primarily and purposely to cover up a crime, wrong doing, graft or corruption.

SECTION 8. Protection of Privacy- While providing access to information, public records, and official records, responsible officials shall afford full protection to the right to privacy of the individual, pursuant to the Data Privacy Act of 2012 (Republic Act No. 10173), as follows:

- a) Each government office shall ensure that personal information in its custody or under its control is disclosed or released only if it is material or relevant to the subject matter of the request and its disclosure is permissible under this ordinance or existing law, rules or regulations.
- b) Each government office must protect personal information in its custody or control by making reasonable security arrangements against leaks or premature disclosure of personal information, which unduly exposes the individual, whose personal information is requested, to vilification, harassment or any other wrongful acts.
- c) Any employee, official or director of a government office who has access, authorized or unauthorized, to personal information in the custody of the office, must not disclose that information except when authorized under this ordinance or pursuant to existing laws, rules or regulation.

SECTION 9. Procedure- The following procedure shall govern the filing and processing of request for access to information.

- a) Any person who requests access to information shall submit a written request to Municipal Public Information Office (MPIO) or the government office concerned. The request shall state the name and contact information of the requesting party, provide valid proof of his identification or authorization, reasonably describe the information requested, and the reason for, or purpose of, the request for information. Provided, that no request shall be denied or refused acceptance unless the reason for the request is contrary to law, existing rules and regulations or it is one of the exceptions.
- b) The public official receiving the request shall be designated the FOI Receiving Officer and shall provide reasonable assistance, free of charge, to enable all requesting parties and particularly those with special needs, to comply with the request requirements under this Section.
- c) The request shall be stamped by the MPIO or the concerned government office, indicating the date and time of receipt and the name, rank, title and position of the FOI receiving officer with the corresponding signature, and a copy thereof furnished to the requesting party. Each government office shall establish a system to trace the status of all requests for information received by it.



- d) The MPIO or the concerned government office shall respond to a request fully compliant with requirements of sub-section (a) hereof as soon as practicable but not exceeding fifteen (15) working days from the receipt thereof.
- e) The period to respond may be extended whenever the information requested requires extensive search of the government office's records facilities, examination of voluminous records, the occurrence of fortuitous cases or other analogous cases. The MPIO or the concerned government office shall notify the person making the request of the extension, setting forth the reasons for such extension. In no case shall the extension go beyond twenty (20) working days unless exceptional circumstances warrant a longer period.
- f) Once a decision is made to grant the request, the person making the request shall be notified of such decision and directed to pay any applicable fees.

SECTION 10. Fees-

- a) The Local Government Offices shall not charge any fee for accepting requests for access to information. Likewise, there shall be no charge for obtaining information in digital format (i.e. PDF, JPEG, etc.). However, the following schedule of fees is imposed for printing, photocopying and certification services rendered by a government office:

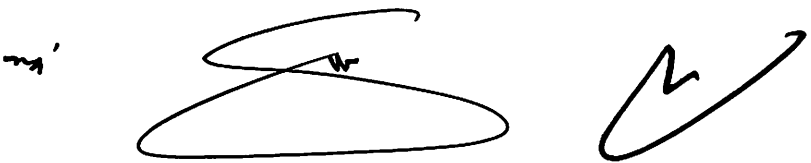
Certification of Official Records/ Certified True Copy	-	One Hundred Pesos (Php100.00)/document for the 1 st copy and Five Pesos (Php5.00)/page for succeeding copies.
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- b) The fee shall be paid to the Municipal Treasurer at the time of the request, whether written or verbal.
- c) The MPIO or the concerned government office may exempt any requesting party from payment of fees, upon request stating the valid reason why such party should not pay the fees.

SECTION 11. Notice of Denial- If the MPIO or the concerned government office decides to deny the request, in whole or in part, it shall as soon as practicable, in any case within fifteen (15) working days from the receipt of the request, or within twenty (20) working days in case of extension, whichever is applicable, notify the requesting party the denial in writing. The notice shall clearly set forth the ground or grounds for denial and the circumstances on which the denial is based. Failure to notify the requesting party of the action taken on the request within the period herein stipulated shall be deemed a denial of the request for access to information.

SECTION 12. Remedies in Cases of Denial of Request for Access to Information-

- a) Denial of any request for access to information may be appealed to the Office of the Municipal Mayor, following the procedure mentioned in Section 9 of this ordinance. Provided, that the written appeal must be filed by the same person making the request within fifteen (15) calendar days from the notice of denial or from the lapse of the relevant period to respond to the request
- b) The appeal shall be decided by the Office of the Mayor within thirty (3) working days from the filing of said written appeal. Failure of the Office of the Mayor to decide within the afore-stated period shall be deemed a denial of the appeal.
- c) Upon exhaustion of administrative appeal remedies, the requesting party may file the appropriate case in the proper courts in accordance with the Rules of Court.



SECTION 13. Keeping of Records- Subject to existing laws, rules, and regulations, government offices shall create and/or maintain accurate and reasonably complete records of important information in appropriate formats, and implement a records management system that facilities easy identification, retrieval and communication of information to the public.

SECTION 14. Penalties- Failure of any government officer to comply with the provisions of this ordinance shall be a ground for the following penalties:

- | | | |
|-------------------------------|---|---|
| 1st Offense | - | Reprimand |
| 2nd Offense | - | Suspension of one (1) to thirty (30) days |
| 3rd Offense | - | Dismissal from the service |

SECTION 15. FOI Office- The Municipal Public Information Office (MPIO) is designated to be the FOI Office tasked to oversee the implementation of this ordinance. The MPIO is further directed to formulate the Implementing Rules and Regulations (IRR), which shall include, among others the following provisions:

- a) The name, location, and contact information of FOI receiving officers
- b) The procedure for the filing and processing of the request
- c) The standard forms for the submission of requests
- d) The process for the disposition of requests
- e) The procedure for the administrative appeal of any denial

SECTION 16. Separability Clause- If any section or part of this ordinance is held unconstitutional or invalid, the other sections or provisions not otherwise affected shall remain in full force or effect.

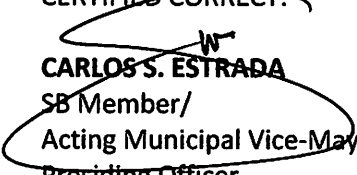
SECTION 17. Repealing Clause- All other ordinances, orders, issuances, rules and regulations which are inconsistent with the provisions of this ordinance are hereby repealed, amended or modified accordingly.

SECTION 18. Effectivity- This ordinance shall take effect fifteen (15) days after posting in three conspicuous places within the municipality.

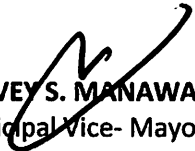
ENACTED this 20th day of August, 2024 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing ordinance.

MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:

CARLOS S. ESTRADA
SB Member/
Acting Municipal Vice-Mayor/
Presiding Officer

APPROVED:


HARVEY S. MANAWATAO
Municipal Vice- Mayor/
Acting Municipal Mayor